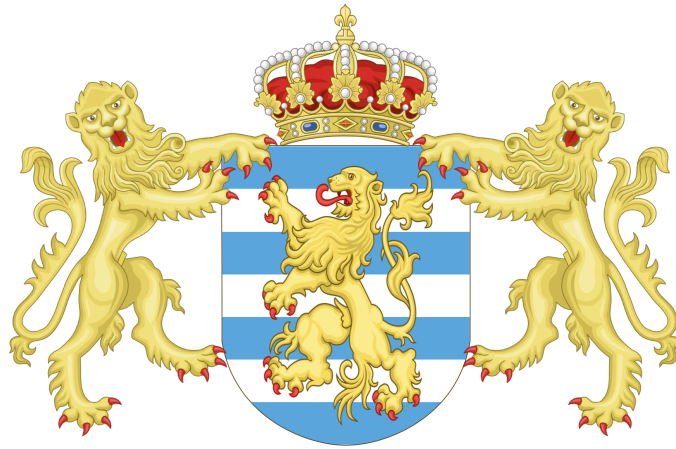




A N A C T

T O

Establish the Criminal Code of the Grand Duchy of Eniarku.

BE IT ENACTED by the Grand Duke’s most Royal Highness, by and with the advice of His Councillors in this present Council assembled, and by the authority of the same in accordance with the Constitution of the Grand Duchy of Eniarku, as follows:—

SECTION 1. SHORT TITLE.

This Act may be cited as the “Criminal Code Act of 2024”.

SECTION 2. TABLE OF CONTENTS.

The table of contents for this Act is as follows:

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Sec. 501.	Amendments.
Sec. 502.	Codification in <i>Corpus Juris</i> .

SECTION 3. DEFINITIONS.

- (a) All definitions included in A.S. 2401 §3 are to be construed equally for the purposes of this Act unless otherwise noted.
- (b) “Crime” is used to designate any act or omission that violates any law prohibiting said action or omission, and must contain the following elements:
 - (i) *Actus reus*, or the act of a crime itself;

- (ii) *Mens rea*, or the individual’s mental state at the time of the act of a crime; and,
 - (iii) Causation between the act of a crime and the effect or impact thereof.
- (c) “Class” is used to designate the type of a crime, such that:
 - (i) “Violent crime” is used to designate any crime that, whether in part or in full, is intended to result in the death or physical or mental harm of another person.
 - (ii) “Property crime” is used to designate any crime that, whether in part or in full, is intended to result in the destruction of, damage of, or interference with the property of another party.
 - (iii) “Inchoate crime” is used to designate any crime that, whether in part or in full, is initiated but not completed, or acts that assist in the commission of another crime.
 - (iv) “Crime against the state” is used to designate any crime that, whether in part or in full, is intended to aid or abet enemies of, incite rebellion or resistance against, or impugn or damage the authority of the State, the Government, or the Sovereign.
- (d) “Class” is used to designate the severity of a crime, such that:
 - (i) “Felony” is used to designate the most severe crimes that are punishable by the strictest punitive or monetary sanctions.
 - (ii) “Misdemeanor” is used to designate intermediate crimes that are punishable by moderate punitive or monetary sanctions.
 - (iii) “Infraction” is used to designate the least severe crimes that are punishable by minimal punitive or monetary sanctions.
- (e) “Weapon” is used to designate any device meeting the definition set forth in §§3(b)-(c) of the Weapons Control Act of 2024 [A.S. 2410 §§3(b)-(c)].

TITLE I—VIOLENT CRIMES

SEC. 101. TYPES; SUBTYPES; DEFINITIONS.

- (a) ARSON.—The willful, malicious, or negligent burning or attempt to burn, in part or in full, a dwelling, public building, motor vehicle or aircraft, or the personal property of another person.
 - (i) AGGRAVATED ARSON.—The display of, threat of use, or actual use of a weapon for the purposes provided by §§(a).
- (b) ASSAULT.—The attack by one person upon another using means that are likely to produce death or severe bodily harm for the purposes of the same.
 - (i) AGGRAVATED ASSAULT.—The display of, threat of use, or actual use of a weapon for the purposes provided by §§(b).
- (c) CHILD ABUSE.—The act or failure to act on the part of a parent, guardian, or caretaker that results in death, serious physical or mental harm, or sexual abuse or exploitation.
 - (i) CHILD NEGLECT.—The act or failure to act on the part of a parent, guardian, or caretaker that results in physical or mental harm but does not rise to the level set forth in §§(c).

- (d) DOMESTIC ABUSE.—Any recent act by a current or former cohabitant, spouse, or partner against a person similarly situated or a child thereof that results in, or is reasonably likely to result in, death, serious physical or mental harm, or sexual abuse or exploitation.
- (e) KIDNAPPING.—The taking, carrying away, or restraint of a person by force or fraud, or the seizure and detention of a person against that person’s will.
 - (i) AGGRAVATED KIDNAPPING.—The display of, threat of use, or actual use of a weapon for the purposes provided by §§(e), or any actions pursuant to §§(e) that are undertaken with the intent of preventing the person from engaging in actions that may result in enforcement against the kidnapper, or any actions pursuant to §§(e) that are undertaken with the intent of extorting persons related to the victim pursuant to §201(d), or any actions pursuant to §§(e) that are undertaken with the intent of engaging in terrorism pursuant to §401(e).
- (f) MANSLAUGHTER.—The act of killing a human being without malice afterthought or otherwise in circumstances that do not rise to the level set forth for murder in §§(g).
 - (i) VOLUNTARY MANSLAUGHTER.—The act of killing a human being with intent to kill or seriously harm under circumstances of adequate provocation that do not rise to the level set forth in §§(f).
 - (ii) CONSTRUCTIVE MANSLAUGHTER.—The act of killing a human being, with or without intent to kill or seriously harm, in the course of committing a lesser crime.
 - (iii) INVOLUNTARY MANSLAUGHTER.—The act of killing a human being without intent to kill or seriously harm.
- (g) MURDER.—The act of killing a human being with malice afterthought or otherwise in circumstances that are more severe than the level set forth for manslaughter in §§(f).
 - (i) AGGRAVATED MURDER.—The display of, threat of use, or actual use of a weapon for the purposes provided by §§(g).
- (h) NEGLIGENCE.—The act or failure to act with understanding and conscious or wanton disregard of a substantial risk of harm to a person.
- (i) RAPE.—The act of penetration, no matter how slight, of any bodily orifice with any body part or object without the consent of the victim in circumstances that are more severe than the level set forth for sexual assault in §§(k).
 - (i) AGGRAVATED RAPE.—The display of, threat of use, or actual use of a weapon for the purposes provided by §§(i).
- (j) ROBBERY.—The act of taking any property, item, or effect of value from a person by force, the threat of force, or by the use of fear.
 - (i) AGGRAVATED ROBBERY.—The display of, threat of use, or actual use of a weapon for the purposes provided by §§(j).
- (k) SEXUAL ASSAULT.—The act of sexually touching, either by coercion or force, with any body part or object without the consent of the victim in circumstances that do not rise to the level set forth for rape in §§(i).
 - (i) AGGRAVATED SEXUAL ASSAULT.—The display of, threat of use, or actual use of a weapon for the purposes provided by §§(k).

SEC. 102. PENALTIES.

- (a) Persons convicted of the types of crimes provided by the entirety of §§(a); (b)(i); (c) particularly; (d); the entirety of (e); the entirety of (f); the entirety of (g); the entirety of (i); (j)(i); and the entirety of (k); of §101 of this Act are guilty of a felony punishable by a term of incarceration not less than one year and not more than ten years, a fine of not less than F20,000.00 and not more than F100,000.00, or both.
- (b) Persons convicted of the types of crimes provided by §§(b) particularly; (c)(i); (h); and (j) particularly of §101 of this Act are guilty of a misdemeanor punishable by a term of incarceration not more than one year, a fine of not more than F19,999.99, or both.
- (c) Persons convicted of the types of crimes not provided by §§(a) or (b) are guilty of an infraction punishable by a term of imprisonment of not more than 180 days, a fine of not more than F10,000.00, or both.

TITLE II—PROPERTY CRIMES

SEC. 201. TYPES; SUBTYPES; DEFINITIONS.

- (a) BURGLARY.—The act of unlawfully entering a home, building, or other area without permission with the intention of committing a further crime or crimes as provided by §101, §201, or §401 of this Act, or any other public law proscribing certain action.
- (b) COUNTERFEITING.—The act of unlawfully copying, imitating, or manufacturing an item without authorization by the rightful owner of the design thereof and passing along the copy, imitation, or faux manufacture as the genuine or original item.
 - (i) MONETARY COUNTERFEITING.—The act of unlawfully copying, imitating, or manufacturing the physical currency of the State, another micronational entity, or a macronational entity without authorization by the State, micronational entity, or macronational entity and passing along the copy, imitation, or faux manufacture as the genuine or original physical currency.
- (c) EMBEZZLEMENT.—The act of deceitfully secreting assets or property by one or more persons who, irrespective of ownership thereof, has or have been entrusted with aforementioned assets or property.
- (d) EXTORTION.—The act of obtaining a benefit of any form via unlawful force or coercion, or the threat of use of unlawful force or coercion to the same effect.
- (e) FORGERY.—The act of falsely creating or altering a written instrument or document with the intent to defraud another person, persons, or other entity.
- (f) FRAUD.—The act of intentionally deceiving another person, persons, or other entity with the intent of securing unfair or unlawful benefits, or to deprive a person, persons, or other entity of legal rights.
- (g) LARCENY.—The act of unlawfully taking or thieving the personal property of another person, persons, or other entity with the intent to deprive the rightful owner of its possession.

- (h) SMUGGLING.—The act of unlawfully transporting objects, goods, substances, information, or people within or across the borders of the State in contravention of applicable law.
- (i) VANDALISM.—The act of deliberate destruction of, defacement of, or damage to public or private property.

SEC. 202. PENALTIES.

- (a) Persons convicted of the types of crimes provided by §§(a), (d), (f), (g), or (h) insofar as the crime is committed concurrently or consecutively to a felony violent crime provided by §102(a), or the commission of the crime yielded not less than F20,000.00, or both; (b)(i); (c) insofar as the commission of the crime yielded not less than F20,000.00; and (i) of §201 of this Act, insofar as the crime is committed concurrently or consecutively to a felony violent crime provided by §102(a), or the commission of the crime resulted in damage amounting to not less than F20,000.00, or both, are guilty of a felony punishable by a term of incarceration not less than one year and not more than ten years, a fine of not less than F20,000.00 and not more than F100,000.00, or both.
- (b) Persons convicted of the types of crimes provided by §§(a), (b) particularly, (d), (e), (f), (g), or (h) insofar as the crime is committed concurrently or consecutively to another misdemeanor crime of any class as defined by this Act, or the commission of the crime yielded not less than F10,000.00 and not more than F19,999.99, or both; (c) insofar as the commission of the crime yielded not more than F10,000.00 and not more than F19,999.99; and (i) of §201 of this Act, insofar as the crime is committed concurrently or consecutively to another misdemeanor crime of any class as defined by this Act, or the commission of the crime resulted in damage amounting to not less than F10,000.00 and not more than F19,999.99, or both, are guilty of a misdemeanor punishable by a term of incarceration not more than one year, a fine of not more than F19,999.99, or both.
- (c) Persons convicted of the types of crimes not provided by §§(a) or (b) are guilty of an infraction punishable by a term of imprisonment of not more than 90 days, a fine of not more than F10,000.00, or both.

TITLE III—INCHOATE CRIMES

SEC. 301. TYPES; SUBTYPES; DEFINITIONS.

- (a) ACCESSORY.—Any action or actions taken by a person that, whether in part or in full, have the effect or intended effect of aiding, abetting, or contributing to the commission or concealment of a crime as provided by §101, §201, or §401 of this Act, or any other public law pursuant to §301.
- (b) ATTEMPT.—The failure of a person, despite the reasonable determination of *mens rea*, to fully complete a crime as provided by §101, §201, or §401 of this Act, or any other public law pursuant to §301.
- (c) CONSPIRACY.—Any agreement between two or more persons to commit a crime as provided by §101, §201, or §401 of this Act, or any other public law pursuant to §301, that is accompanied with the requisite *mens rea* to achieve the goal, whether implicit or explicit, of the agreement.

- (d) **INCITEMENT.**—Any action or actions taken by a person that, whether in part or in full, have the effect or intended effect of encouraging or influencing another person to commit a crime as provided by §101, §201, or §401 of this Act, or any other public law pursuant to §301, without the provision of money.
- (e) **SOLICITATION.**—Any action or actions taken by a person that, whether in part or in full, have the effect or intended effect of encouraging or influencing another person to commit a crime as provided by §101, §201, or §401 of this Act, or any other public law pursuant to §301, via the provision of money.

SEC. 302. PENALTIES.

- (a) Persons convicted of the types of crimes provided by §301 of this Act, insofar as the crime is directly related to the commission or attempted commission of any felony crime provided by §102(a) or §202(a), are guilty of a felony punishable by a term of incarceration not less than one year and not more than five years, a fine of not less than F15,000.00 and not more than F50,000.00, or both.
- (b) Persons convicted of the types of crimes provided by §301 of this Act, insofar as the crime is directly related to the commission or attempted commission of any misdemeanor crime provided by §102(b) or §202(b), are guilty of a misdemeanor punishable by a term of incarceration not more than one year, a fine of not less than F5,000.00 and not more than F14,999.99, or both.
- (c) Persons convicted of the types of crimes provided by §301 of this Act, insofar as the crime is directly related to the commission or attempted commission of any infraction crime provided by §102(c) or §202(c), are guilty of an infraction punishable by a term of incarceration not more than 30 days, a fine of not more than F4,999.99, or both.

TITLE IV—CRIMES AGAINST THE STATE

SEC. 401. TYPES; SUBTYPES; DEFINITIONS.

- (a) **ESPIONAGE.**—Any action or actions taken by a person that involve spying on or gathering secret materials from the State with the intent of transferring those materials to another organization or state, but without the intent of transferring those materials to an organization or state designated by the Government as an enemy.
- (b) **LÈSE-MAJESTÉ.**—Any action or actions taken by a person that involve or imply insulting, threatening, libeling, offending, or otherwise defaming the character, person, or authority of the Sovereign, the consort, the regent, the heirs, or the Grand Ducal House.
- (c) **SEDITION.**—Any action or actions taken by a person that involve the overt incitement of discontent among other individuals or the public towards, or insurrection against, any organ of the State, the Constitution, or the general social, economic, or political order.
- (d) **SUBVERSION.**—Any action or actions taken by a person that involve the covert incitement of discontent among other individuals or the public towards, or insurrection against, any organ of the State, the Constitution, or the general social, economic, or political order.

- (e) **TERRORISM.**—Any action or actions taken by a person that involve the use of force or violence against persons or property to threaten, intimidate, or coerce a government or population with the intent of advancing political, social, or economic objectives.
- (f) **TREASON.**—Any action or actions taken by a person that involve spying on or gathering secret materials from the State with the intent of transferring those materials to an organization or state designated by the Government as an enemy.

SEC. 402. PENALTIES.

- (a) Persons convicted of the types of crimes provided by §401 of this Act are guilty of a felony punishable by a term of incarceration not less than five years and not more than 20 years, a fine of not less than F50,000.00 and not more than F500,000.00, or both, in addition to the permanent revocation of citizenship, if applicable.
- (b) Citizens convicted of the types of crimes provided by §401 of this Act must have their status adjusted pursuant to §203 of A.S. 2407.
- (c) Persons maintaining a visa granted by the State convicted of the types of crimes provided by §401 of this Act are subject to status adjustment pursuant to §105 of A.S. 2407.

TITLE V—MISCELLANEOUS PROVISIONS

SEC. 501. AMENDMENTS.

- (a) Any section or provision of this Act may be amended, modified, altered, or repealed, in part or in its entirety, at any time by the Council of State as chaired by The Sovereign.
- (b) Any section or provision of this Act that is amended, modified, altered, or repealed, in part or in its entirety, pursuant to §§(a), shall be appropriately marked by strike-through text.

SEC. 502. CODIFICATION IN *CORPUS JURIS*.

- (a) Pursuant to A.S. 2401 §202(a), the entirety of this Act should be codified under sub-units of Title 9 of the *Corpus Juris* by default.
- (b) Pursuant to A.S. 2401 §202(c)-(d), the Council of State reserves the right to codify particular provisions of this Act under other Titles of the *Corpus Juris* in a manner that may be provided for by law.
- (c) Pursuant to A.S. 2401 §301, the Council of State reserves the right to codify (or re-codify) particular provisions of this Act in the *Corpus Juris* as amended, modified, altered, or repealed, in a manner that may be provided for by law.

SEC. 503. STATUTE OF LIMITATIONS.

- (a) Prosecutorial actions must be initiated within three years from the time that the crime occurs, subject to regulation of law.
- (b) The statute of limitations provided by §§(a) may be extended to within one year from the time that an individual is convicted of committing a civil tort, pursuant to any provision of A.S. 2409, insofar as that civil tort is determined by a judicial

entity presented with clear and convincing evidence to be reasonably related to the criminal offense, subject to regulation of law.

SEC. 504. TRIALS; APPEALS; BURDEN OF PROOF.

- (a) Individuals lawfully detained by a State military, police, or security agency, pursuant to A.S. 2403, and charged by the State of committing any of the crimes provided by Titles I-IV of this Act shall be entitled to a trial before a randomly selected panel of three members of the Crown Council of Appeal or any other judicial entity provided by subsequent law, and shall only be convicted of any of the crimes provided by Titles I-IV of this Act upon the demonstration of guilt beyond a reasonable doubt.
- (b) Individuals lawfully convicted pursuant to §§(a) shall be entitled to not less than one appeal before the en banc Crown Council of Appeal or any other judicial entity provided by subsequent law in which they may present new evidence, raise questions of law or due process, or demonstrate any other error of the trial tribunal provided by §§(a) that may warrant the vacatur or overruling of a previous judicial order or decision related to a conviction of a any of the crimes provided by Titles I-IV of this Act upon demonstration of guilt beyond a reasonable doubt.

BY AND UNDER THE SEAL OF THE CROWN-IN-COUNCIL, SO ENACTED THIS
TWENTY-SIXTH DAY OF SEPTEMBER, TWO THOUSAND AND TWENTY-FOUR.

